

The Scheduled Areas (Assimilation of Laws) Act, 1951

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[Act 37 of 1951](#)

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[An Act to assimilate certain laws in force in the scheduled areas to the laws in force in the districts of Darrang and Lakhimpur of the State of Assam.](#)

[BE it enacted by Parliament as follows:-](#)

[1.](#)

[Short title and commencement.-](#)

[\(1\)](#)

[This Act may be called the Scheduled Areas \(Assimilation of Laws\) Act, 1951.](#)

[\(2\)](#)

[It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.](#)

[2.](#)

[Definitions.-](#)

In this Act,-

(a)

"appointed day" means the date appointed under sub-section (2) of section 1 for the coming into force of this Act;

(b)

"law" means so much of any Act, Ordinance, Regulation, rule, order or bye-law as relates to any of the matters enumerated in List I and III in the Seventh Schedule to the Constitution;

(c)

"scheduled areas" means the areas specified in the Schedule.

3.

Assimilation of laws.-

(1)

All laws which immediately before the appointed day extend to, or are in force in, the scheduled areas shall on that day cease to be in force in the scheduled areas except as respects things done or omitted to be done before that day, and for the removal of doubts, it is hereby declared that section 6 of the General Clauses Act, 1897 (10 of 1897) shall apply in relation to such cesser as it applies in relation to the repeal of an enactment by a Central Act.

(2)

All laws which immediately before the appointed day extend to, or are in force in, the Darrang district of the State of Assam shall as from that day extend to, or, as the case may be, come into force in, the areas specified in paragraph 1 of the Schedule.

(3)

All laws which immediately before the appointed day extend to, or are in force in, the Lakhimpur district of the State of Assam shall as from that day extend to, or, as the case may be, come into force in, the areas specified in paragraphs 2 and 3 of the Schedule.

4.

Transitional provisions.-

Notwithstanding anything contained in section 3, the Central Government of the State of Assam may, by order, direct that during such period, not exceeding twelve months from the appointed day, as may be specified in the order, any law which immediately before the appointed day was in force in the scheduled areas, shall be deemed to have continued to be in force therein or any specified part thereof, and may further likewise direct that any law which would have extended to, or come into force in, the scheduled areas on the appointed day, shall not be deemed to have extended thereto or come into force therein or any specified part thereof.

5.

Savings.-

Notwithstanding anything contained in section 3, all suits, cases and other legal proceedings between the parties all of whom belong to the Scheduled Tribes specified in Item 2 of Part I-Assam, of the Schedule to the Constitution (Scheduled Tribes) Order, 1950, or such other tribe or tribes, as may be specified in this behalf, shall be tried and continue to be tried under the 3

Assam Frontier (Administration of Justice) Regulation, 1945 (Regulation 1 of 1945) as if this Act had not been passed.

1. 1st October, 1951, vide Notification No. S. R. O. 1461, dated 15th September, 1951, see Gazette of India, Part II, s. 3.

6.

Provision for removal of difficulties.-

If any difficulty arises in relation to the transition under section 3 from one law or group of laws to another law or group of laws, the Central Government may, by order notified in the Official Gazette, make such provisions as it considers necessary for the removal of the difficulty.

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